

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
June 4, 2026
8:30 a.m./1:30 p.m.

10. BENJAMIN DE ALBA V. ASHLEY DE ALBA

26FL0254

Petitioner filed a Request for Order (RFO) on March 27, 2026, seeking guideline child and spousal support. Petitioner is also seeking an order dividing the adoption assistance funding equally between the parties, as they share joint legal and physical custody of the minors. Petitioner concurrently filed an Income and Expense Declaration. Respondent was served with some, but not all the required documents.

Respondent filed a Responsive Declaration and an Income and Expense Declaration on May 15, 2026. It was served on the same day. Respondent has not raised the defect in service, as such, the court deems it to have been waived. Respondent has included a proposed calculation for support and requests the court consider her second income as bonus income. Respondent has included a bonus table in her calculations.

Petitioner filed a Reply Declaration on May 22, 2026. It was served the same day. Petitioner has included an updated proposed guideline calculation.

The court has read and considered the filings as outlined above. The court grants Petitioner's request that the adoption assistance funding be divided equally between the parties. The court notes it is unable to use Petitioner's proposed guideline calculations as Petitioner has used the Santa Clara formula for guideline temporary spousal support rather than the Alameda formula in compliance with Local Rule 8.09.03. The court cannot use Respondent's guideline calculation, as only the bonus table was provided in Exhibit B to Respondent's declaration.

As to guideline child support, the court denies Respondent's request to consider her second income as bonus income. The court has incorporated the second income in its guideline calculation. Utilizing those figures provided by the parties in their respective Income and Expense Declarations, the court finds guideline child support to be \$1,725 per month payable from Respondent to Petitioner (see attached X-Spouse). The court orders Respondent to pay Petitioner \$1,725 as and for guideline child support effective April 1, 2026, with payments due on the first of each month until further order of the court or termination by operation of law.

The court finds this order results in an arrears balance of \$5,175 for the months of April through June inclusive. The court orders Respondent to pay Petitioner \$431.25 per month as and for arrears effective June 15, 2026, with further payments due on the 15th of each month until paid in full (approximately 12 months).

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The court finds guideline temporary spousal support to be \$964 per month payable from Respondent to Petitioner (see attached X-Spouse). However, the court is not ordering Respondent to pay Petitioner temporary guideline spousal support. The court finds that Respondent does not have the ability to pay after the award of child support. Further, the court finds Petitioner's income is sufficient to meet his needs. See Family Code section 3600. Petitioner is working full time and earns nearly the same income as Petitioner when Petitioner's second income is not included. Further, Petitioner has disclosed no attorney's fees, while Respondent is paying attorney's fees at the rate of \$585 per hour. Respondent has significantly higher expenses than Petitioner. As such, the court finds that Petitioner has a lower need and Respondent does not have the ability to pay. Petitioner's request for temporary guideline spousal support is denied.

All prior orders not in conflict with this order remain in full force and effect. Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #10: THE COURT GRANTS PETITIONER'S REQUEST THAT THE ADOPTION ASSISTANCE FUNDING BE DIVIDED EQUALLY BETWEEN THE PARTIES. AS TO GUIDELINE CHILD SUPPORT, THE COURT DENIES RESPONDENT'S REQUEST TO CONSIDER HER SECOND INCOME AS BONUS INCOME.

THE COURT FINDS GUIDELINE CHILD SUPPORT TO BE \$1,725 PER MONTH PAYABLE FROM RESPONDENT TO PETITIONER (SEE ATTACHED X-SPOUSE). THE COURT ORDERS RESPONDENT TO PAY PETITIONER \$1,725 AS AND FOR GUIDELINE CHILD SUPPORT EFFECTIVE APRIL 1, 2026 WITH PAYMENTS DUE ON THE FIRST OF EACH MONTH UNTIL FURTHER ORDER OF THE COURT OR TERMINATION BY OPERATION OF LAW.

THE COURT FINDS THIS ORDER RESULTS IN AN ARREARS BALANCE OF \$5,175 FOR THE MONTHS OF APRIL THROUGH JUNE INCLUSIVE. THE COURT ORDERS RESPONDENT TO PAY PETITIONER \$431.25 PER MONTH AS AND FOR ARREARS EFFECTIVE JUNE 15, 2026, WITH FURTHER PAYMENTS DUE ON THE 15TH OF EACH MONTH UNTIL PAID IN FULL (APPROXIMATELY 12 MONTHS).

THE COURT FINDS GUIDELINE TEMPORARY SPOUSAL SUPPORT TO BE \$964 PER MONTH PAYABLE FROM RESPONDENT TO PETITIONER (SEE ATTACHED X-SPOUSE). HOWEVER, THE COURT IS NOT ORDERING RESPONDENT TO PAY PETITIONER

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TEMPORARY GUIDELINE SPOUSAL SUPPORT. THE COURT FINDS THAT RESPONDENT DOES NOT HAVE THE ABILITY TO PAY AFTER THE AWARD OF CHILD SUPPORT. FURTHER, THE COURT FINDS PETITIONER'S INCOME IS SUFFICIENT TO MEET HIS NEEDS. SEE FAMILY CODE SECTION 3600. PETITIONER IS WORKING FULL TIME AND EARNS NEARLY THE SAME INCOME AS PETITIONER WHEN PETITIONER'S SECOND INCOME IS NOT INCLUDED. FURTHER, PETITIONER HAS DISCLOSED NO ATTORNEY'S FEES, WHILE RESPONDENT IS PAYING ATTORNEY'S FEES AT THE RATE OF \$585 PER HOUR. RESPONDENT HAS SIGNIFICANTLY HIGHER EXPENSES THAN PETITIONER. AS SUCH, THE COURT FINDS THAT PETITIONER HAS A LOWER NEED AND RESPONDENT DOES NOT HAVE THE ABILITY TO PAY. PETITIONER'S REQUEST FOR TEMPORARY GUIDELINE SPOUSAL SUPPORT IS DENIED.

ALL PRIOR ORDERS NOT IN CONFLICT WITH THIS ORDER REMAIN IN FULL FORCE AND EFFECT. PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

Fixed Shares	Father	Mother	Monthly figures		Cash Flow	Guideline	Proposed
#of children	3	0	2026				
% time with NCP	0.00 %	49.99 %	GUIDELINE		Comb. net spendable	25109	25109
Filing status	MFJ->	<-MFJ	Nets(adjusted)		Percent change	0%	0%
# exemptions	5	5	Support		Father		
Wages+salary	13433	13333	Father	9130	Payment cost/benefit	2689	2689
Self-employed income	0	6300	Mother	15979	Net spendable income	11819	11819
Other taxable income	0	0	Total	25109	Change from guideline	0	0
TANF+CS received	0	0	Addons		% of combined spendable	47%	47%
Other nontaxble income	0	0	Guideln CS	1725	% of saving over guideline	0%	0%
New spouse income	0	0	Alameda SS	964	Total taxes	2540	2540
401(k) employee contrib	0	645	Total	2689	Dep. exemption value	0	0
Adjustments to income	0	0	-		# withholding allowances	0w	0w
SS paid prev marriage	0	0	Proposed		Net wage paycheck	9838	9838
CS paid prev marriage	0	0	Tactic 9		Mother		
Health insurance	614	83	CS		Payment cost/benefit	-2689	-2689
Other medical expense	0	0	SS		Net spendable income	13290	13290
Property tax expense	0	1846	Total		Change from guideline	0	0
Ded interest expense	0	6987	Saving		% of combined spendable	53%	53%
Charitable contributions	0	0	Releases		% of saving over guideline	0%	0%
Misc tax deductions	0	0	0		Total taxes	3571	3571
Qual bus income ded	0	0	0		Dep. exemption value	0	0
Required union dues	0	0	0		# withholding allowances	0w	0w
Mandatory retirement	1098	0	0		Net wage paycheck	9134	9134
Hardship deduction	0 *	0 *	0				
Other GDL deductions	51	0	0				
Child care expenses	0	0	0				

Mother pays Guideline CS, Guideline SS, Proposed CS, Proposed SS

FC 4055 checking: ON

Per Child Information									
	Timeshare	cce(F)	cce(M)	Addons	Payor	Basic CS	Payor	Pres CS	Payor
All children	50 - 50	0	0	0	Father	1725	Mother	1725	Mother
	50 - 50	0	0	0	Father	345	Mother	345	Mother
	50 - 50	0	0	0	Father	518	Mother	518	Mother
	50 - 50	0	0	0	Father	863	Mother	863	Mother

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11. ISREAL MENDOZ V. ENEIDA MENDOZA

PFL20210121

Respondent filed a Request for Order (RFO) on March 13, 2026, seeking modification of the current child custody orders. The parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on April 10, 2026, and a review hearing on June 4, 2026. Upon review of the court file, there is no Proof of Service showing Petitioner was properly served.

Nevertheless, both parties appeared for the CCRC appointment and were able to reach many agreements. A report with the parties' agreements and additional recommendations was filed with the court on May 6, 2026. Copies were mailed to the parties on May 7, 2026.

Petitioner filed a Responsive Declaration on May 15, 2026. It was served on May 21, 2026. Petitioner does not raise the issue of the defect in service; therefore, the court deems it to have been waived. Petitioner requests the parties have joint legal custody while he has sole physical custody.

Petitioner filed a Reply to the CCRC report on May 22, 2026. It was mail served the same day. Petitioner disputes the CCRC counselor's characterization of his actions.

The court has read and considered the filings as outlined above. The court finds the parties' agreements and the recommendations as set forth in the May 6th CCRC report to be in the best interest of the minor. The court adopts the agreements and recommendations as set forth.

All prior orders not in conflict with these orders remain in full force and effect. Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #11: THE COURT FINDS THE PARTIES' AGREEMENTS AND THE RECOMMENDATIONS AS SET FORTH IN THE MAY 6TH CCRC REPORT TO BE IN THE BEST INTEREST OF THE MINOR. THE COURT ADOPTS THE AGREEMENTS AND RECOMMENDATIONS AS SET FORTH. ALL PRIOR ORDERS NOT IN CONFLICT WITH THESE ORDERS REMAIN IN FULL FORCE AND EFFECT. RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.